



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 12, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103662 regarding Police Officer Scott Mark, Tax No. 950823 (DADS No. 2022-27171)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Police Officer Mark's actions do not warrant a disciplinary action. In this matter, Police Officer Mark stopped a vehicle operated by the complainant for a traffic infraction. The complainant told Police Officer Mark that her wallet was in a bag in the backseat of the vehicle and asked if she could retrieve it. Police Officer Mark allowed the complainant to exit the front driver's side of the vehicle and enter the rear of the vehicle to retrieve her bag. As the complainant opened her bag to look for the identification, Police Officer Mark stated "No gun in there, right?" The CCRB substantiated one allegation of improper question against Police Officer Mark.

After a review of the entire investigative file, including body worn camera evidence, the Police Commissioner finds that Police Officer Mark's singular remark towards the complainant does not warrant disciplinary action. While it is an established legal principal that police officers must have founded suspicion in order to ask accusatory questions, police officers may still engage in protective measures, either because of the nature of the approach or because of the individual's behavior. The Police Commissioner did not find that Police Officer Mark intended to be inconsistent with the established legal principal. Police Officer Mark stated that his remark was merely a protective measure as it was evident that he was not intending to find evidence or contraband, but merely ensuring his own safety. Police Officer Mark did not attempt to search the complainant's bag nor did Police Officer Mark attempt to stop the complainant at any time from rummaging through her bag. There was no attempt to make the complainant fearful that she was suspected of possessing a weapon or of some further wrongdoing. Further, Police Officer Mark

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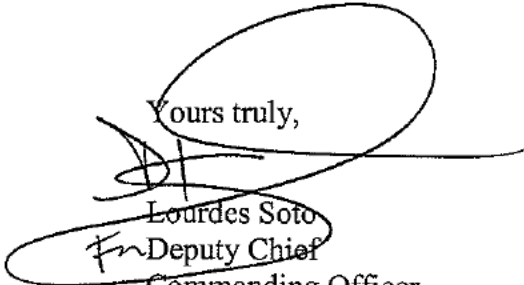
Website: <http://nyc.gov/nypd>

remained courteous and professional while the complainant searched her own bag for her identification.

Therefore, based on the foregoing, Police Officer Mark will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 212-11 (Investigative Encounters/Improper Question).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto

Deputy Chief

Commanding Officer

Police Commissioner's Office